

24NNCV03109 24NNCV03109

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-04

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Case Number: 24NNCV03109 Hearing Date: August 4, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

CARPENTERS-CONTRACTORS

COOPERATION COMMITTEE, INC., a California Nonprofit Corporation,

Plaintiff,

vs.

WJK DEVELOPMENT CO. dba WJK

CONSTRUCTION AND DEVELOPMENT, a California Corporation, GOLDEN STATE

EQUIPMENT RENTALS, INC., a California Corporation, and DOES 1-100,

Defendants.

Case

No.:

24NNCV03109

Hearing

Date:

August
4, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO ENFORCE SETTLEMENT AGREEMENT

MOVING PARTY: Plaintiff Carpenters-Contractors
Cooperation Committee, Inc.

RESPONDING PARTY: None.

The Court
considered the moving papers and reply filed in connection with the instant
motion.

BACKGROUND

On July 25, 2024,
Plaintiff Carpenters-Contractors Cooperation Committee, Inc.
("Plaintiff") brought this action against Defendants WJK Development Co. dba
WJK Construction and Development ("WJK") and Golden State Equipment Rentals,
Inc. ("Golden State") (collectively, "Defendants"), alleging a cause of action
for failure to pay for each hour worked at the appropriate rate. Plaintiff
alleges Defendants owe unpaid wages in violation of the California Labor Code
and Industrial Welfare Commission Wage Order 16.

On
November 27, 2024, WJK filed a cross-complaint against Golden State, alleging
causes of action for (1) express indemnity, (2) implied indemnity, (3)
equitable indemnity, (4) contribution, and (5) declaratory relief.

On
July 1, 2026, the Court entered dismissal with prejudice as to WJK only.

On
July 8, 2026, Plaintiff filed the instant motion to enforce settlement

agreement.

On

July 28, 2026, Plaintiff filed a reply and amended reply, noting Golden State's non-opposition. As of July 29, 2026, Golden State has not filed an opposition.

LEGAL STANDARD

"If parties to pending litigation

stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).)

A 664.6 motion to enforce a settlement involves (1) examining if there is an enforceable settlement, (2) interpreting the settlement terms, and (3) determining the rights of the parties. (Estate of Jones (2022) 82 Cal.App.5th 948, 952.) In a motion to enforce a settlement agreement, the Court may interpret the settlement terms and conditions, but it cannot impose terms to which the parties did not agree. (Ibid.) Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) Thus, to enforce a written settlement agreement under Code of Civil Procedure section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-98.) "Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon." (Id. at p. 810 [internal citations omitted, emphasis in original].)

DISCUSSION

Plaintiff requests entry of judgment against Golden State in the amount of \$55,000.00 plus reasonable attorneys' fees and costs incurred in bringing the instant motion. Under Code of Civil Procedure section 664.6, subdivision (a), the Court may enter judgment pursuant to the terms of the settlement.

Here, the parties' Stipulation and Settlement Agreement of Claims (the "Agreement") provides in pertinent part the following:

Defendants Golden State and WJK agree to pay, and Plaintiff agrees to accept, the gross amount of a total of seventy-thousand and zero dollars (\$70,000.00) (the "Settlement Amount") for purposes of preventing any current or future litigation related to the dispute. Golden State agrees to pay fifty-five thousand and zero dollars (\$55,000.00) of the Settlement Amount, and WJK agrees to pay fifteen thousand and zero dollars (\$15,000.00) of the Settlement Amount.

1.

Payment of the Settlement Amount by Defendants Golden State and WJK shall be made within forty-five (45) days of the Effective Date of this Agreement.

2.

Defendant Golden State shall issue one (1) check in the amount of \$55,000.00, payable to the Shanley, APC Client-Trust Account.

3.

Defendant WJK shall issue one (1) check in the amount of \$15,000.00, payable to the Shanley, APC Client-Trust Account

4.

The checks representing the Settlement Amount shall be delivered to Plaintiff's Attorneys: Samantha Pastor and Desmond Lee, Shanley, APC, 533 S. Fremont Avenue, 9th Floor, Los Angeles, CA 90071.

5.

Plaintiff agrees that the total Settlement Amount of \$70,000.00 shall constitute the entire monetary consideration due to it under this Agreement and

that it will not seek any further compensation or consideration from Defendants for any other claimed damages, costs, or attorney's fees in connection with the Claims encompassed by this Agreement, except for any attorney's fees or costs incurred in an action to enforce this Agreement under Paragraph Q, below.

(Lee Decl., Exh. A.)

The Agreement also states that the court will retain jurisdiction to enforce the settlement pursuant to C.C.P. section 664.6, even after dismissal of this matter.

(Lee Decl., Exh. A.) The Agreement contains the following attorneys' fees provision:

If any Party to this Agreement brings an action (including arbitration) proceeding, or motion against any other Party to this Agreement to enforce any provision of this Agreement, to obtain a declaration of rights or duties under it, to rescind it or by reason of a breach of any term or condition set forth in it, the prevailing Party in any such action, proceeding or motion shall be entitled to have and recover its attorneys' fees and costs against any non-prevailing Party.

(Lee Decl., Exh. A.) The Agreement is signed by Antonio Quinones, the Executive Director for Plaintiff, Jaime Padilla, the President/CEO of Golden State, and Grant Joseph Keene, the CEO of WJK. (Lee Decl., Exh. A.) WJK made its \$15,000.00 payment pursuant to the Agreement, prompting WJK's dismissal with prejudice on July 1, 2026. (Lee Decl., ¶ 7.) Golden State failed to make its payment required by the Agreement. (Lee Decl., ¶ 8.) Golden State proposed a five-month installment plan, but Plaintiff did not agree. (Lee Decl., ¶ 12.)

The Court finds that the statutory requirements of Code of Civil Procedure section 664.6 are met. Plaintiff introduces the Agreement, a signed writing by the parties to this litigation detailing the parties' meeting of the minds on all material points of the settlement. Notably, Golden State has not filed an opposition arguing otherwise. "A failure to oppose a motion may be deemed a consent to the granting of a motion." (Cal. Rules of Court, rule 8.54(c).) Considering the joint agreement, Golden State's failure to make payment, and the lack of opposition, the Court grants Plaintiff's motion to enforce settlement.

Plaintiff requests that the Court award \$1,664.00 in attorneys' fees and \$24.53 in costs associated with bringing the instant motion. Counsel requests attorneys' fees for 7.2 hours spent attempting to enforce the Agreement and preparing this motion, and costs for the filing fee to bring this motion. (Lee Decl., ¶ 10.) As noted above, the Agreement expressly permits a party who brings a motion to enforce settlement to recover attorney's fees and costs. (Lee Decl., Exh. A.) The Court finds the request for attorneys' fees and costs warranted and recoverable within the Agreement's terms. Accordingly, the Court grants Plaintiff's request for attorneys' fees and costs.

Plaintiff also requests prejudgment interest in the amount of \$678.08 in its proposed order. The Agreement does not explicitly authorize prejudgment interest. Additionally, Plaintiff's motion does not address prejudgment interest. Therefore, the Court declines to award the \$678.00 in prejudgment interest. Accordingly, the reduced total amount awarded is \$56,688.53.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff Carpenters-Contractors Cooperation Committee, Inc.'s motion to enforce settlement against Defendant Golden State Equipment Rentals, Inc.

Judgment is entered against Golden State in the reduced total amount of \$56,688.53.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 4, 2026

Sarah
J. Heidel

Judge

of the Superior Court